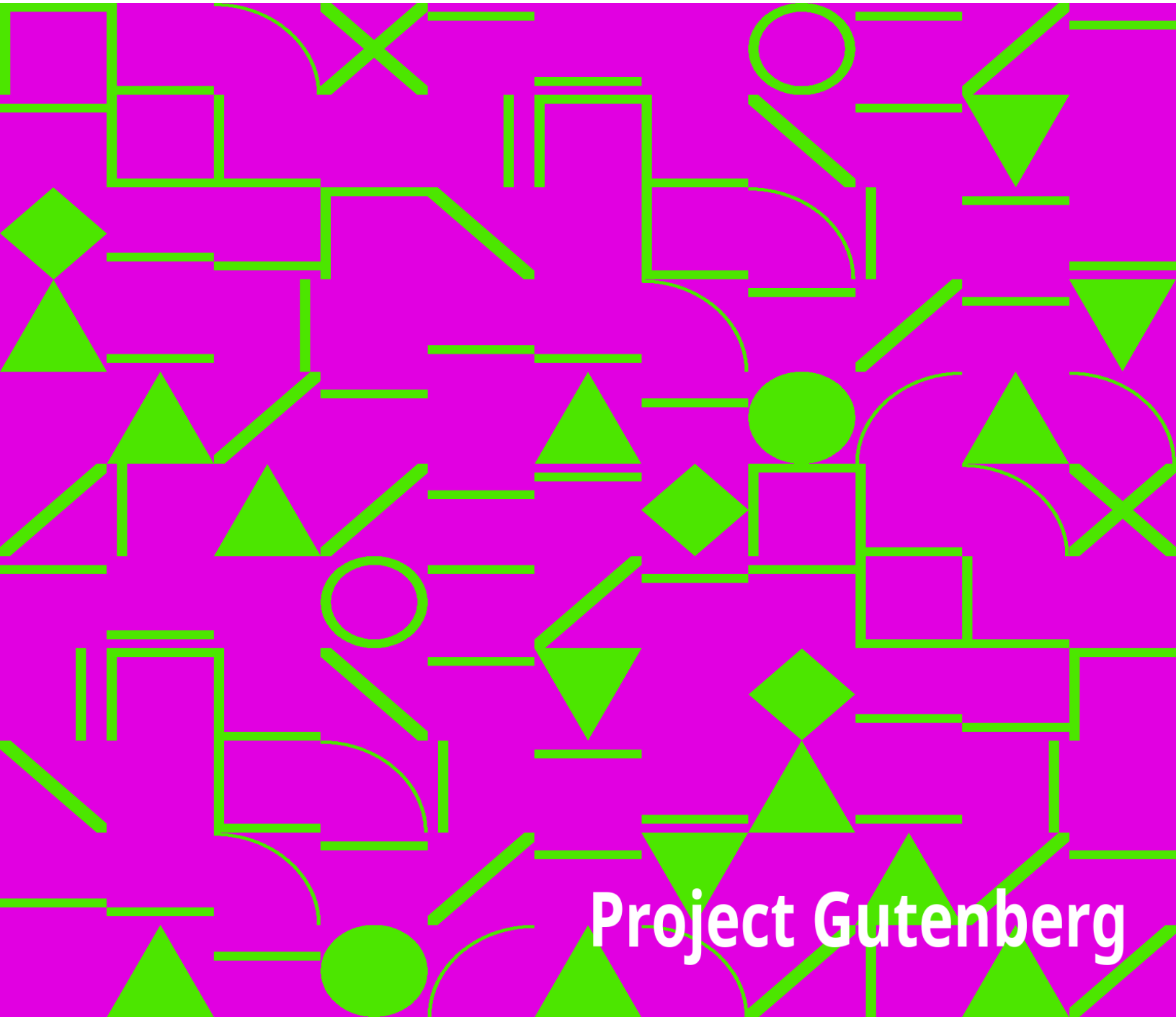


Oliver Wendell Holmes (from Literary Friends and Acquaintance)

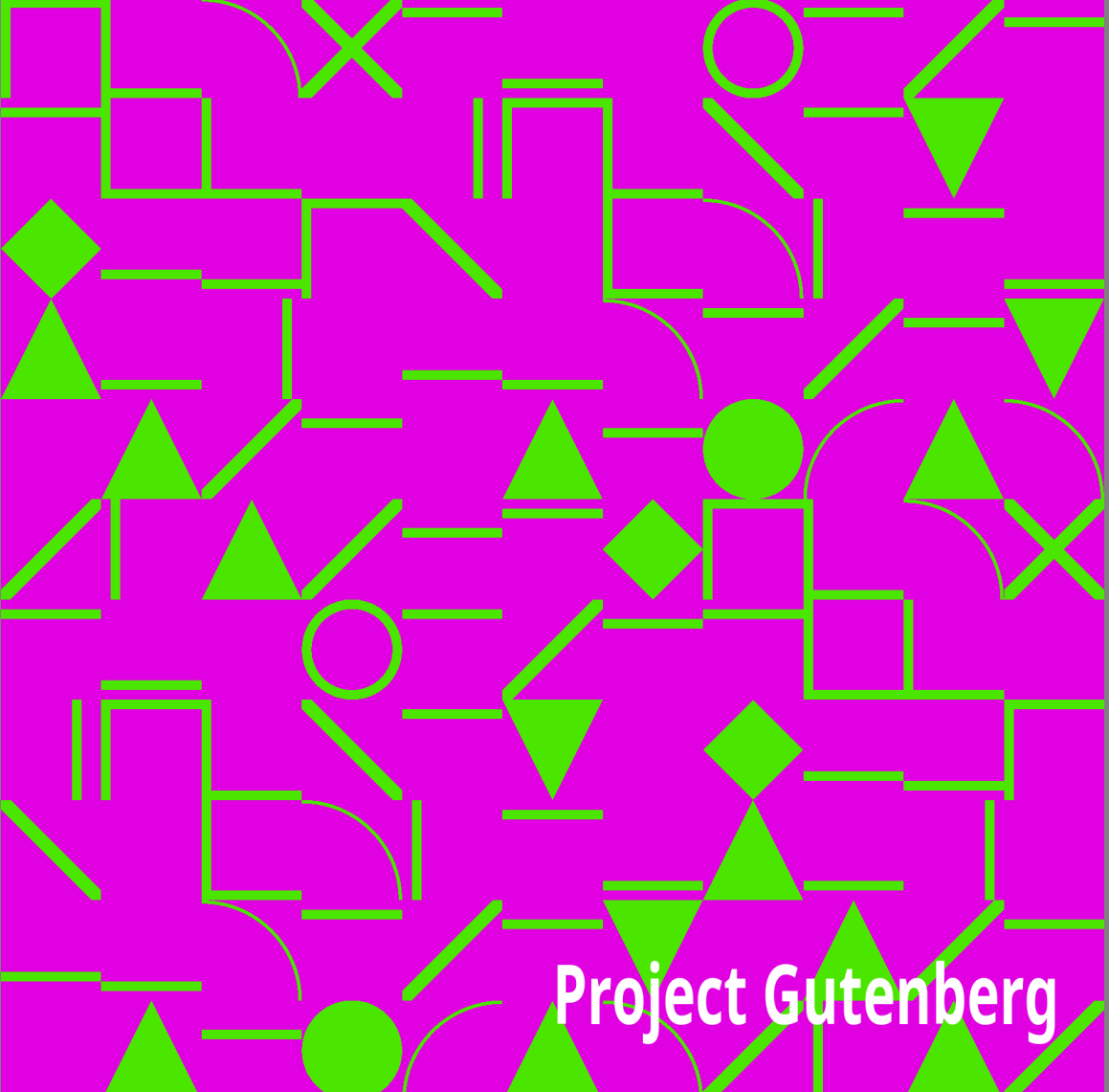
William Dean Howells



Project Gutenberg

**Oliver Wendell Holmes (from Literary
Friends and Acquaintance)**

William Dean Howells



Project Gutenberg

The Project Gutenberg eBook of Oliver Wendell Holmes (from Literary Friends and Acquaintance)

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Oliver Wendell Holmes (from Literary Friends and Acquaintance)

Author: William Dean Howells

Release date: October 22, 2004 [eBook #3395]

Most recently updated: January 8, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/3395

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK OLIVER
WENDELL HOLMES (FROM LITERARY FRIENDS AND
ACQUAINTANCE) ***

Produced by David Widger

LITERARY FRIENDS AND ACQUAINTANCES—Oliver Wendell
Holmes

by William Dean Howells

OLIVER WENDELL HOLMES

Elsewhere we literary folk are apt to be such a common lot, with tendencies here and there to be a shabby lot; we arrive from all sorts of unexpected holes and corners of the earth, remote, obscure; and at the best we do so often come up out of the ground; but at Boston we were of ascertained and noted origin, and good part of us dropped from the skies. Instead of holding horses before the doors of theatres; or capping verses at the plough-tail; or tramping over Europe with nothing but a flute in the pocket; or walking up to the metropolis with no luggage but the MS. of a tragedy; or sleeping in doorways or under the arches of bridges; or serving as apothecaries' 'prentices—we were good society from the beginning. I think this was none the worse for us, and it was vastly the better for good society.

Literature in Boston, indeed, was so respectable, and often of so high a lineage, that to be a poet was not only to be good society, but almost to be good family. If one names over the men who gave Boston her supremacy in

literature during that Unitarian harvest-time of the old Puritanic seed-time which was her Augustan age, one names the people who were and who had been socially first in the city ever since the self-exile of the Tories at the time of the Revolution. To say Prescott, Motley, Parkman, Lowell, Norton, Higginson, Dana, Emerson, Channing, was to say patrician, in the truest and often the best sense, if not the largest. Boston was small, but these were of her first citizens, and their primacy, in its way, was of the same quality as that, say, of the chief families of Venice. But these names can never have the effect for the stranger that they had for one to the manner born. I say had, for I doubt whether in Boston they still mean all that they once meant, and that their equivalents meant in science, in law, in politics. The most famous, if not the greatest of all the literary men of Boston, I have not mentioned with them, for Longfellow was not of the place, though by his sympathies and relations he became of it; and I have not mentioned Oliver Wendell Holmes, because I think his name would come first into the reader's thought with the suggestion of social quality in the humanities.

Holmes was of the Brahminical caste which his humorous recognition invited from its subjectivity in the New England consciousness into the light where all could know it and own it, and like Longfellow he was allied to the patriciate of Boston by the most intimate ties of life. For a long time, for the whole first period of his work, he stood for that alone, its tastes, its prejudices, its foibles even, and when he came to stand in his 'second period, for vastly, for infinitely more, and to make friends with the whole race, as few men have ever done, it was always, I think, with a secret shiver of doubt, a backward look of longing, and an eye askance. He was himself perfectly aware of this at times, and would mark his several misgivings with a humorous sense of the situation. He was essentially too kind to be of a narrow world, too human to be finally of less than humanity, too gentle to be of the finest gentility. But such limitations as he had were in the direction I have hinted, or perhaps more than hinted; and I am by no means ready to

make a mock of them, as it would be so easy to do for some reasons that he has himself suggested. To value aright the affection which the old Bostonian had for Boston one must conceive of something like the patriotism of men in the times when a man's city was a man's country, something Athenian, something Florentine. The war that nationalized us liberated this love to the whole country, but its first tenderness remained still for Boston, and I suppose a Bostonian still thinks of himself first as a Bostonian and then as an American, in a way that no New-Yorker could deal with himself. The rich historical background dignifies and ennobles the intense public spirit of the place, and gives it a kind of personality.

II.

In literature Doctor Holmes survived all the Bostonians who had given the city her primacy in letters, but when I first knew him there was no apparent ground for questioning it. I do not mean now the time when I visited New England, but when I came to live near Boston, and to begin the many happy years which I spent in her fine, intellectual air. I found time to run in upon him, while I was there arranging to take my place on the Atlantic Monthly, and I remember that in this brief moment with him he brought me to book about some vaunting paragraph in the 'Nation' claiming the literary primacy for New York. He asked me if I knew who wrote it, and I was obliged to own that I had written it myself, when with the kindness he always showed me he protested against my position. To tell the truth, I do not think now I had any very good reasons for it, and I certainly could urge none that would stand against his. I could only fall back upon the saving clause that this primacy was claimed mainly if not wholly for New York in the future. He was willing to leave me the connotations of prophecy, but I think he did even this out of politeness rather than conviction, and I believe he had always a sensitiveness where Boston was concerned, which could not seem ungenerous to any generous mind. Whatever lingering doubt of me he may have had, with reference to Boston, seemed to satisfy itself when several years afterwards he happened to speak of a certain character in an early novel of mine, who was not quite the kind of Bostonian one could wish to be. The thing came up in talk with another person, who had referred to my

Bostonian, and the doctor had apparently made his acquaintance in the book, and not liked him. "I understood, of course," he said, "that he was a Bostonian, not the Bostonian," and I could truthfully answer that this was by all means my own understanding too.

His fondness for his city, which no one could appreciate better than myself, I hope, often found expression in a burlesque excess in his writings, and in his talk perhaps oftener still. Hard upon my return from Venice I had a half-hour with him in his old study on Charles Street, where he still lived in 1865, and while I was there a young man came in for the doctor's help as a physician, though he looked so very well, and was so lively and cheerful, that I have since had my doubts whether he had not made a pretext for a glimpse of him as the Autocrat. The doctor took him upon his word, however, and said he had been so long out of practice that he could not do anything for him, but he gave him the address of another physician, somewhere near Washington Street. "And if you don't know where Washington Street is," he said, with a gay burst at a certain vagueness which had come into the young man's face, "you don't know anything."

We had been talking of Venice, and what life was like there, and he made me tell him in some detail. He was especially interested in what I had to say of the minute subdivision and distribution of the necessities, the small coins, and the small values adapted to their purchase, the intensely retail character, in fact, of household provisioning; and I could see how he pleased himself in formulating the theory that the higher a civilization the finer the apportionment of the demands and supplies. The ideal, he said, was a civilization in which you could buy two cents' worth of beef, and a divergence from this standard was towards barbarism.

The secret of the man who is universally interesting is that he is universally interested, and this was, above all, the secret of the charm that

Doctor Holmes had for every one. No doubt he knew it, for what that most alert intelligence did not know of itself was scarcely worth knowing. This knowledge was one of his chief pleasures, I fancy; he rejoiced in the consciousness which is one of the highest attributes of the highly organized man, and he did not care for the consequences in your mind, if you were so stupid as not to take him aright. I remember the delight Henry James, the father of the novelist, had in reporting to me the frankness of the doctor, when he had said to him, "Holmes, you are intellectually the most alive man I ever knew." "I am, I am," said the doctor. "From the crown of my head to the sole of my foot, I'm alive, I'm alive!" Any one who ever saw him will imagine the vivid relish he had in recognizing the fact. He could not be with you a moment without shedding upon you the light of his flashing wit, his radiant humor, and he shone equally upon the rich and poor in mind. His gaiety of heart could not withhold itself from any chance of response, but he did wish always to be fully understood, and to be liked by those he liked. He gave his liking cautiously, though, for the affluence of his sympathies left him without the reserves of colder natures, and he had to make up for these with careful circumspection. He wished to know the character of the person who made overtures to his acquaintance, for he was aware that his friendship lay close to it; he wanted to be sure that he was a nice person, and though I think he preferred social quality in his fellow-man, he did not refuse himself to those who had merely a sweet and wholesome humanity. He did not like anything that tasted or smelt of Bohemianism in the personnel of literature, but he did not mind the scent of the new-ploughed earth, or even of the barn-yard. I recall his telling me once that after two younger brothers-in-letters had called upon him in the odor of an habitual beeriness and smokiness, he opened the window; and the very last time I saw him he remembered at eighty-five the offence he had found on his first visit to New York, when a metropolitan poet had asked him to lunch in a basement restaurant.

III.

He seemed not to mind, however, climbing to the little apartment we had in Boston when we came there in 1866, and he made this call upon us in due form, bringing Mrs. Holmes with him as if to accent the recognition socially. We were then incredibly young, much younger than I find people ever are nowadays, and in the consciousness of our youth we felt, to the last exquisite value of the fact, what it was to have the Autocrat come to see us; and I believe he was not displeased to perceive this; he liked to know that you felt his quality in every way. That first winter, however, I did not see him often, and in the spring we went to live in Cambridge, and thereafter I met him chiefly at Longfellow's, or when I came in to dine at the Fieldses', in Boston. It was at certain meetings of the Dante Club, when Longfellow read aloud his translation for criticism, and there was supper later, that one saw the doctor; and his voice was heard at the supper rather than at the criticism, for he was no Italianate. He always seemed to like a certain turn of the talk toward the mystical, but with space for the feet on a firm ground of fact this side of the shadows; when it came to going over among them, and laying hold of them with the band of faith, as if they were substance, he was not of the excursion. It is well known how fervent, I cannot say devout, a spiritualist Longfellow's brother-in-law, Appleton, was; and when he was at the table too, it took all the poet's delicate skill to keep him and the Autocrat from involving themselves in a cataclysmal controversy upon the matter of manifestations. With Doctor Holmes the inquiry was inquiry, to

the last, I believe, and the burden of proof was left to the ghosts and their friends. His attitude was strictly scientific; he denied nothing, but he expected the supernatural to be at least as convincing as the natural.

There was a time in his history when the popular ignorance classed him with those who were once rudely called infidels; but the world has since gone so fast and so far that the mind he was of concerning religious belief would now be thought religious by a good half of the religious world. It is true that he had and always kept a grudge against the ancestral Calvinism which afflicted his youth; and he was through all rises and lapses of opinion essentially Unitarian; but of the honest belief of any one, I am sure he never felt or spoke otherwise than most tolerantly, most tenderly. As often as he spoke of religion, and his talk tended to it very often, I never heard an irreligious word from him, far less a scoff or sneer at religion; and I am certain that this was not merely because he would have thought it bad taste, though undoubtedly he would have thought it bad taste; I think it annoyed, it hurt him, to be counted among the iconoclasts, and he would have been profoundly grieved if he could have known how widely this false notion of him once prevailed. It can do no harm at this late day to impart from the secrets of the publishing house the fact that a supposed infidelity in the tone of his story *The Guardian Angel* cost the *Atlantic Monthly* many subscribers. Now the tone of that story would not be thought even mildly agnostic, I fancy; and long before his death the author had outlived the error concerning him.

It was not the best of his stories, by any means, and it would not be too harsh to say that it was the poorest. His novels all belonged to an order of romance which was as distinctly his own as the form of dramatized essay which he invented in the *Autocrat*. If he did not think poorly of them, he certainly did not think too proudly, and I heard him quote with relish the phrase of a lady who had spoken of them to him as his "medicated novels."

That, indeed, was perhaps what they were; a faint, faint odor of the pharmacopoeia clung to their pages; their magic was scientific. He knew this better than any one else, of course, and if any one had said it in his turn he would hardly have minded it. But what he did mind was the persistent misinterpretation of his intention in certain quarters where he thought he had the right to respectful criticism in stead of the succession of sneers that greeted the successive numbers of his story; and it was no secret that he felt the persecution keenly. Perhaps he thought that he had already reached that time in his literary life when he was a fact rather than a question, and when reasons and not feelings must have to do with his acceptance or rejection. But he had to live many years yet before he reached this state. When he did reach it, happily a good while before his death, I do not believe any man ever enjoyed the like condition more. He loved to feel himself out of the fight, with much work before him still, but with nothing that could provoke ill-will in his activities. He loved at all times to take himself objectively, if I may so express my sense of a mental attitude that misled many. As I have said before, he was universally interested, and he studied the universe from himself. I do not know how one is to study it otherwise; the impersonal has really no existence; but with all his subtlety and depth he was of a make so simple, of a spirit so naive, that he could not practise the feints some use to conceal that interest in self which, after all, every one knows is only concealed. He frankly and joyously made himself the starting-point in all his inquest of the hearts and minds of other men, but so far from singling himself out in this, and standing apart in it, there never was any one who was more eagerly and gladly your fellow-being in the things of the soul.

IV.

In the things of the world, he had fences, and looked at some people through palings and even over the broken bottles on the tops of walls; and I think he was the loser by this, as well as they. But then I think all fences are bad, and that God has made enough differences between men; we need not trouble ourselves to multiply them. Even behind his fences, however, Holmes had a heart kind for the outsiders, and I do not believe any one came into personal relations with him who did not experience this kindness. In that long and delightful talk I had with him on my return from Venice (I can praise the talk because it was mainly his), we spoke of the status of domestics in the Old World, and how fraternal the relation of high and low was in Italy, while in England, between master and man, it seemed without acknowledgment of their common humanity. "Yes," he said, "I always felt as if English servants expected to be trampled on; but I can't do that. If they want to be trampled on, they must get some one else." He thought that our American way was infinitely better; and I believe that in spite of the fences there was always an instinctive impulse with him to get upon common ground with his fellow-man. I used to notice in the neighborhood cabman who served our block on Beacon Street a sort of affectionate reverence for the Autocrat, which could have come from nothing but the kindly terms between them; if you went to him when he was engaged to Doctor Holmes, he told you so with a sort of implication in his manner that the thought of anything else for the time was profanation. The good fellow who took him

his drives about the Beverly and Manchester shores seemed to be quite in the joke of the doctor's humor, and within the bounds of his personal modesty and his functional dignity permitted himself a smile at the doctor's sallies, when you stood talking with him, or listening to him at the carriage-side.

The civic and social circumstance that a man values himself on is commonly no part of his value, and certainly no part of his greatness. Rather, it is the very thing that limits him, and I think that Doctor Holmes appeared in the full measure of his generous personality to those who did not and could not appreciate his circumstance, and not to those who formed it, and who from life-long association were so dear and comfortable to him. Those who best knew how great a man he was were those who came from far to pay him their duty, or to thank him for some help they had got from his books, or to ask his counsel or seek his sympathy. With all such he was most winningly tender, most intelligently patient. I suppose no great author was ever more visited by letter and in person than he, or kept a faithfuler conscience for his guests. With those who appeared to him in the flesh he used a miraculous tact, and I fancy in his treatment of all the physician native in him bore a characteristic part. No one seemed to be denied access to him, but it was after a moment of preparation that one was admitted, and any one who was at all sensitive must have felt from the first moment in his presence that there could be no trespassing in point of time. If now and then some insensitive began to trespass, there was a sliding-scale of dismissal that never failed of its work, and that really saved the author from the effect of intrusion. He was not bored because he would not be.

I transfer at random the impressions of many years to my page, and I shall not try to observe a chronological order in these memories. Vivid among them is that of a visit which I paid him with Osgood the publisher, then newly the owner of the Atlantic Monthly, when I had newly become

the sole editor. We wished to signalize our accession to the control of the magazine by a stroke that should tell most in the public eye, and we thought of asking Doctor Holmes to do something again in the manner of the Autocrat and the Professor at the Breakfast Table. Some letters had passed between him and the management concerning our wish, and then Osgood thought that it would be right and fit for us to go to him in person. He proposed the visit, and Doctor Holmes received us with a mind in which he had evidently formulated all his thoughts upon the matter. His main question was whether at his age of sixty years a man was justified in seeking to recall a public of the past, or to create a new public in the present. He seemed to have looked the ground over not only with a personal interest in the question, but with a keen scientific zest for it as something which it was delightful to consider in its generic relations; and I fancy that the pleasure of this inquiry more than consoled him for such pangs of misgiving as he must have had in the personal question. As commonly happens in the solution of such problems, it was not solved; he was very willing to take our minds upon it, and to incur the risk, if we thought it well and were willing to share it.

We came away rejoicing, and the new series began with the new year following. It was by no means the popular success that we had hoped; not because the author had not a thousand new things to say, or failed to say them with the gust and freshness of his immortal youth, but because it was not well to disturb a form associated in the public mind with an achievement which had become classic. It is of the Autocrat of the Breakfast Table that people think, when they think of the peculiar species of dramatic essay which the author invented, and they think also of the Professor at the Breakfast Table, because he followed so soon; but the Poet at the Breakfast Table came so long after that his advent alienated rather than conciliated liking. Very likely, if the Poet had come first he would have had no second place in the affections of his readers, for his talk was full of

delightful matter; and at least one of the poems which graced each instalment was one of the finest and greatest that Doctor Holmes ever wrote. I mean "Homesick in Heaven," which seems to me not only what I have said, but one of the most important, the most profoundly pathetic in the language. Indeed, I do not know any other that in the same direction goes so far with suggestion so penetrating. The other poems were mainly of a cast which did not win; the metaphysics in them were too much for the human interest, and again there rose a foolish clamor of the creeds against him on account of them. The great talent, the beautiful and graceful fancy, the eager imagination of the Autocrat could not avail in this third attempt, and I suppose the Poet at the Breakfast Table must be confessed as near a failure as Doctor Holmes could come. It certainly was so in the magazine which the brilliant success of the first had availed to establish in the high place the periodical must always hold in the history of American literature. Lowell was never tired of saying, when he recurred to the first days of his editorship, that the magazine could never have gone at all without the Autocrat papers. He was proud of having insisted upon Holmes's doing something for the new venture, and he was fond of recalling the author's misgivings concerning his contributions, which later repeated themselves with too much reason, though not with the reason that was in his own mind.

V.

He lived twenty-five years after that self-question at sixty, and after eighty he continued to prove that threescore was not the limit of a man's intellectual activity or literary charm. During all that time the work he did in mere quantity was the work that a man in the prime of life might well have been vain of doing, and it was of a quality not less surprising. If I asked him with any sort of fair notice I could rely upon him always for something for the January number, and throughout the year I could count upon him for those occasional pieces in which he so easily excelled all former writers of occasional verse, and which he liked to keep from the newspapers for the magazine. He had a pride in his promptness with copy, and you could always trust his promise. The printer's toe never galled the author's kibe in his case; he wished to have an early proof, which he corrected fastidiously, but not overmuch, and he did not keep it long. He had really done all his work in the manuscript, which came print-perfect and beautifully clear from his pen, in that flowing, graceful hand which to the last kept a suggestion of the pleasure he must have had in it. Like all wise contributors, he was not only patient, but very glad of all the queries and challenges that proof-reader and editor could accumulate on the margin of his proofs, and when they were both altogether wrong he was still grateful. In one of his poems there was some Latin-Quarter French, which our collective purism questioned, and I remember how tender of us he was in maintaining that in his Parisian time, at least, some ladies beyond the

Seine said "Eh, b'en," instead of "Eh, bien." He knew that we must be always on the lookout for such little matters, and he would not wound our ignorance. I do not think any one enjoyed praise more than he. Of course he would not provoke it, but if it came of itself, he would not deny himself the pleasure, as long as a relish of it remained. He used humorously to recognize his delight in it, and to say of the lecture audiences which in earlier times hesitated applause, "Why don't they give me three times three? I can stand it!" He himself gave in the generous fulness he desired. He did not praise foolishly or dishonestly, though he would spare an open dislike; but when a thing pleased him he knew how to say so cordially and skilfully, so that it might help as well as delight. I suppose no great author has tried more sincerely and faithfully to befriend the beginner than he; and from time to time he would commend something to me that he thought worth looking at, but never insistently. In certain cases, where he had simply to ease a burden, from his own to the editorial shoulders, he would ask that the aspirant might be delicately treated. There might be personal reasons for this, but usually his kindness of heart moved him. His tastes had their geographical limit, but his sympathies were boundless, and the hopeless creature for whom he interceded was oftener remote from Boston and New England than otherwise.

It seems to me that he had a nature singularly affectionate, and that it was this which was at fault if he gave somewhat too much of himself to the celebration of the Class of '29, and all the multitude of Boston occasions, large and little, embalmed in the clear amber of his verse, somewhat to the disadvantage of the amber. If he were asked he could not deny the many friendships and fellowships which united in the asking; the immediate reclame from these things was sweet to him; but he loved to comply as much as he loved to be praised. In the pleasure he got he could feel himself a prophet in his own country, but the country which owned him prophet began perhaps to feel rather too much as if it owned him, and did not prize

his vaticinations at all their worth. Some polite Bostonians knew him chiefly on this side, and judged him to their own detriment from it.

VI.

After we went to live in Cambridge, my life and the delight in it were so wholly there that in ten years I had hardly been in as many Boston houses. As I have said, I met Doctor Holmes at the Fieldses', and at Longfellow's, when he came out to a Dante supper, which was not often, and somewhat later at the Saturday Club dinners. One parlous time at the publisher's I have already recalled, when Mrs. Harriet Beecher Stowe and the Autocrat clashed upon homeopathy, and it required all the tact of the host to lure them away from the dangerous theme. As it was, a battle waged in the courteous forms of Fontenoy, went on pretty well through the dinner, and it was only over the coffee that a truce was called. I need not say which was heterodox, or that each had a deep and strenuous conscience in the matter. I have always felt it a proof of his extreme leniency to me, unworthy, that the doctor was able to tolerate my own defection from the elder faith in medicine; and I could not feel his kindness less caressing because I knew it a concession to an infirmity. He said something like, After all a good physician was the great matter; and I eagerly turned his clemency to praise of our family doctor.

He was very constant at the Saturday Club, as long as his strength permitted, and few of its members missed fewer of its meetings. He continued to sit at its table until the ghosts of Hawthorne, of Agassiz, of Emerson, of Longfellow, of Lowell, out of others less famous, bore him

company there among the younger men in the flesh. It must have been very melancholy, but nothing could deeply cloud his most cheerful spirit. His strenuous interest in life kept him alive to all the things of it, after so many of his friends were dead. The questions which he was wont to deal with so fondly, so wisely, the great problems of the soul, were all the more vital, perhaps, because the personal concern in them was increased by the translation to some other being of the men who had so often tried with him to fathom them here. The last time I was at that table he sat alone there among those great memories; but he was as gay as ever I saw him; his wit sparkled, his humor gleamed; the poetic touch was deft and firm as of old; the serious curiosity, the instant sympathy remained. To the witness he was pathetic, but to himself he could only have been interesting, as the figure of a man surviving, in an alien but not unfriendly present, the past which held so vast a part of all that had constituted him. If he had thought of himself in this way, it would have been without one emotion of self-pity, such as more maudlin souls indulge, but with a love of knowledge and wisdom as keenly alert as in his prime.

For three privileged years I lived all but next-door neighbor of Doctor Holmes in that part of Beacon Street whither he removed after he left his old home in Charles Street, and during these years I saw him rather often. We were both on the water side, which means so much more than the words say, and our library windows commanded the same general view of the Charles rippling out into the Cambridge marshes and the sunsets, and curving eastward under Long Bridge, through shipping that increased onward to the sea. He said that you could count fourteen towns and villages in the compass of that view, with the three conspicuous monuments accenting the different attractions of it: the tower of Memorial Hall at Harvard; the obelisk on Bunker Hill; and in the centre of the picture that bulk of Tufts College which he said he expected to greet his eyes the first thing when he opened them in the other world. But the prospect, though

generally the same, had certain precious differences for each of us, which I have no doubt he valued himself as much upon as I did. I have a notion that he fancied these were to be enjoyed best in his library through two oval panes let into the bay there apart from the windows, for he was apt to make you come and look out of them if you got to talking of the view before you left. In this pleasant study he lived among the books, which seemed to multiply from case to case and shelf to shelf, and climb from floor to ceiling. Everything was in exquisite order, and the desk where he wrote was as scrupulously neat as if the sloven disarray of most authors' desks were impossible to him. He had a number of ingenious little contrivances for helping his work, which he liked to show you; for a time a revolving book-case at the corner of his desk seemed to be his pet; and after that came his fountain-pen, which he used with due observance of its fountain principle, though he was tolerant of me when I said I always dipped mine in the inkstand; it was a merit in his eyes to use a fountain pen in anywise. After you had gone over these objects with him, and perhaps taken a peep at something he was examining through his microscope, he sat down at one corner of his hearth, and invited you to an easy chair at the other. His talk was always considerate of your wish to be heard, but the person who wished to talk when he could listen to Doctor Holmes was his own victim, and always the loser. If you were well advised you kept yourself to the question and response which manifested your interest in what he was saying, and let him talk on, with his sweet smile, and that husky laugh he broke softly into at times. Perhaps he was not very well when you came in upon him; then he would name his trouble, with a scientific zest and accuracy, and pass quickly to other matters. As I have noted, he was interested in himself only on the universal side; and he liked to find his peculiarity in you better than to keep it his own; he suffered a visible disappointment if he could not make you think or say you were so and so too. The querulous note was not in his most cheerful register; he would not

dwell upon a specialized grief; though sometimes I have known him touch very lightly and currently upon a slight annoyance, or disrelish for this or that. As he grew older, he must have had, of course, an old man's disposition to speak of his infirmities; but it was fine to see him catch himself up in this, when he became conscious of it, and stop short with an abrupt turn to something else. With a real interest, which he gave humorous excess, he would celebrate some little ingenious thing that had fallen in his way, and I have heard him expatiate with childlike delight upon the merits of a new razor he had got: a sort of mower, which he could sweep recklessly over cheek and chin without the least danger of cutting himself. The last time I saw him he asked me if he had ever shown me that miraculous razor; and I doubt if he quite liked my saying I had seen one of the same kind.

It seemed to me that he enjoyed sitting at his chimney-corner rather as the type of a person having a good time than as such a person; he would rather be up and about something, taking down a book, making a note, going again to his little windows, and asking you if you had seen the crows yet that sometimes alighted on the shoals left bare by the ebb-tide behind the house. The reader will recall his lovely poem, "My Aviary," which deals with the winged life of that pleasant prospect. I shared with him in the flock of wild-ducks which used to come into our neighbor waters in spring, when the ice broke up, and stayed as long as the smallest space of brine remained unfrozen in the fall. He was graciously willing I should share in them, and in the cloud of gulls which drifted about in the currents of the sea and sky there, almost the whole year round. I did not pretend an original right to them, coming so late as I did to the place, and I think my deference pleased him.

VII.

As I have said, he liked his fences, or at least liked you to respect them, or to be sensible of them. As often as I went to see him I was made to wait in the little reception-room below, and never shown at once to his study. My name would be carried up, and I would hear him verifying my presence from the maid through the opened door; then there came a cheery cry of wellcome: "Is that you? Come up, come up!" and I found him sometimes half-way down the stairs to meet me. He would make an excuse for having kept me below a moment, and say something about the rule he had to observe in all cases, as if he would not have me feel his fence a personal thing. I was aware how thoroughly his gentle spirit pervaded the whole house; the Irish maid who opened the door had the effect of being a neighbor too, and of being in the joke of the little formality; she apologized in her turn for the reception-room; there was certainly nothing trampled upon in her manner, but affection and reverence for him whose gate she guarded, with something like the sentiment she would have cherished for a dignitary of the Church, but nicely differenced and adjusted to the Autocrat's peculiar merits.

The last time I was in that place, a visitant who had lately knocked at my own door was about to enter. I met the master of the house on the landing of the stairs outside his study, and he led me in for the few moments we could spend together. He spoke of the shadow so near, and said he supposed there

could be no hope, but he did not refuse the cheer I offered him from my ignorance against his knowledge, and at something that was thought or said he smiled, with even a breath of laughter, so potent is the wont of a lifetime, though his eyes were full of tears, and his voice broke with his words. Those who have sorrowed deepest will understand this best.

It was during the few years of our Beacon Street neighborhood that he spent those hundred days abroad in his last visit to England and France. He was full of their delight when he came back, and my propinquity gave me the advantage of hearing him speak of them at first hand. He whimsically pleased himself most with his Derby-day experiences, and enjoyed contrasting the crowd and occasion with that of forty or fifty years earlier, when he had seen some famous race of the Derby won; nothing else in England seemed to have moved him so much, though all that royalties, dignities, and celebrities could well do for him had been done. Of certain things that happened to him, characteristic of the English, and interesting to him in their relation to himself through his character of universally interested man, he spoke freely; but he has said what he chose to the public about them, and I have no right to say more. The thing that most vexed him during his sojourn apparently was to have been described in one of the London papers as quite deaf; and I could truly say to him that I had never imagined him at all deaf, or heard him accused of it before. "Oh, yes," he said, "I am a little hard of hearing on one side. But it isn't deafness."

He had, indeed, few or none of the infirmities of age that make themselves painfully or inconveniently evident. He carried his slight figure erect, and until his latest years his step was quick and sure. Once he spoke of the lessened height of old people, apropos of something that was said, and "They will shrink, you know," he added, as if he were not at all concerned in the fact himself. If you met him in the street, you encountered a spare, carefully dressed old gentleman, with a clean-shaven face and a

friendly smile, qualified by the involuntary frown of his thick, senile brows; well coated, lustrously shod, well gloved, in a silk hat, latterly wound with a mourning-weed. Sometimes he did not know you when he knew you quite well, and at such times I think it was kind to spare his years the fatigue of recalling your identity; at any rate, I am glad of the times when I did so. In society he had the same vagueness, the same dimness; but after the moment he needed to make sure of you, he was as vivid as ever in his life. He made me think of a bed of embers on which the ashes have thinly gathered, and which, when these are breathed away, sparkles and tinkles keenly up with all the freshness of a newly kindled fire. He did not mind talking about his age, and I fancied rather enjoyed doing so. Its approaches interested him; if he was going, he liked to know just how and when he was going. Once he spoke of his lasting strength in terms of imaginative humor: he was still so intensely interested in nature, the universe, that it seemed to him he was not like an old man so much as a lusty infant which struggles against having the breast snatched from it. He laughed at the notion of this, with that impersonal relish which seemed to me singularly characteristic of the self-consciousness so marked in him. I never heard one lugubrious word from him in regard to his years. He liked your sympathy on all grounds where he could have it self-respectfully, but he was a most manly spirit, and he would not have had it even as a type of the universal decay. Possibly he would have been interested to have you share in that analysis of himself which he was always making, if such a thing could have been.

He had not much patience with the unmanly craving for sympathy in others, and chiefly in our literary craft, which is somewhat ignobly given to it, though he was patient, after all. He used to say, and I believe he has said it in print,—[Holmes said it in print many times, in his three novels and scattered through the "Breakfast Table" series. D.W.]—that unless a man could show a good reason for writing verse, it was rather against him, and a proof of weakness. I suppose this severe conclusion was something he had

reached after dealing with innumerable small poets who sought the light in him with verses that no editor would admit to print. Yet of morbidness he was often very tender; he knew it to be disease, something that must be scientifically rather than ethically treated. He was in the same degree kind to any sensitiveness, for he was himself as sensitive as he was manly, and he was most delicately sensitive to any rightful social claim upon him. I was once at a dinner with him, where he was in some sort my host, in a company of people whom he had not seen me with before, and he made a point of acquainting me with each of them. It did not matter that I knew most of them already; the proof of his thoughtfulness was precious, and I was sorry when I had to disappoint it by confessing a previous knowledge.

VIII.

I had three memorable meetings with him not very long before he died: one a year before, and the other two within a few months of the end. The first of these was at luncheon in the summer-house of a friend whose hospitality made it summer the year round, and we all went out to meet him, when he drove up in his open carriage, with the little sunshade in his hand, which he took with him for protection against the heat, and also, a little, I think, for the whim of it. He sat a moment after he arrived, as if to orient himself in respect to each of us. Beside the gifted hostess, there was the most charming of all the American essayists, and the Autocrat seemed at once to find himself singularly at home with the people who greeted him. There was no interval needed for fanning away the ashes; he tinkled up before he entered the house, and at the table he was as vivid and scintillant as I ever saw him, if indeed I ever saw him as much so. The talk began at once, and we had made him believe that there was nothing egotistic in his taking the word, or turning it in illustration from himself upon universal matters. I spoke among other things of some humble ruins on the road to Gloucester, which gave the way-side a very aged look; the tumbled foundation-stones of poor bits of houses, and "Ah," he said, "the cellar and the well?" He added, to the company generally, "Do you know what I think are the two lines of mine that go as deep as any others, in a certain direction?" and he began to repeat stragglingly certain verses from one of his earlier poems, until he came to the closing couplet. But I will give them in full, because in

going to look them up I have found them so lovely, and because I can hear his voice again in every fondly accented syllable:

"Who sees unmoved, a ruin at his feet,
The lowliest home where human hearts have beat?
Its hearth-stone, shaded with the bistre stain,
A century's showery torrents wash in vain;
Its starving orchard where the thistle blows,
And mossy trunks still mark the broken rows;
Its chimney-loving poplar, oftenest seen
Next an old roof, or where a roof has been;
Its knot-grass, plantain,—all the social weeds,
Man's mute companions following where he leads;
Its dwarfed pale flowers, that show their straggling heads,
Sown by the wind from grass-choked garden-beds;
Its woodbine creeping where it used to climb;
Its roses breathing of the olden time;
All the poor shows the curious idler sees,
As life's thin shadows waste by slow degrees,
Till naught remains, the saddening tale to tell,
Save home's last wrecks—the CELLAR AND THE WELL!"

The poet's chanting voice rose with a triumphant swell in the climax, and "There," he said, "isn't it so? The cellar and the well—they can't be thrown down or burnt up; they are the human monuments that last longest and defy decay." He rejoiced openly in the sympathy that recognized with him the divination of a most pathetic, most signal fact, and he repeated the last couplet again at our entreaty, glad to be entreated for it. I do not know whether all will agree with him concerning the relative importance of the lines, but I think all must feel the exquisite beauty of the picture to which they give the final touch.

He said a thousand witty and brilliant things that day, but his pleasure in this gave me the most pleasure, and I recall the passage distinctly out of the dimness that covers the rest. He chose to figure us younger men, in touching upon the literary circumstance of the past and present, as representative of modern feeling and thinking, and himself as no longer contemporary. We knew he did this to be contradicted, and we protested, affectionately, fervently, with all our hearts and minds; and indeed there were none of his generation who had lived more widely into ours. He was not a prophet like Emerson, nor ever a voice crying in the wilderness like Whittier or Lowell. His note was heard rather amid the sweet security of streets, but it was always for a finer and gentler civility. He imagined no new rule of life, and no philosophy or theory of life will be known by his name. He was not constructive; he was essentially observant, and in this he showed the scientific nature. He made his reader known to himself, first in the little, and then in the larger things. From first to last he was a censor, but a most winning and delightful censor, who could make us feel that our faults were other people's, and who was not wont

"To bait his homilies with his brother worms."

At one period he sat in the seat of the scorner, as far as Reform was concerned, or perhaps reformers, who are so often tedious and ridiculous; but he seemed to get a new heart with the new mind which came to him when he began to write the Autocrat papers, and the light mocker of former days became the serious and compassionate thinker, to whom most truly nothing that was human was alien. His readers trusted and loved him; few men have ever written so intimately with so much dignity, and perhaps none has so endeared himself by saying just the thing for his reader that his reader could not say for himself. He sought the universal through himself in others, and he found to his delight and theirs that the most universal thing was often, if not always, the most personal thing.

In my later meetings with him I was struck more and more by his gentleness. I believe that men are apt to grow gentler as they grow older, unless they are of the curmudgeon type, which rusts and crusts with age, but with Doctor Holmes the gentleness was peculiarly marked. He seemed to shrink from all things that could provoke controversy, or even difference; he waived what might be a matter of dispute, and rather sought the things that he could agree with you upon. In the last talk I had with him he appeared to have no grudge left, except for the puritanic orthodoxy in which he had been bred as a child. This he was not able to forgive, though its tradition was interwoven with what was tenderest and dearest in his recollections of childhood. We spoke of puritanism, and I said I sometimes wondered what could be the mind of a man towards life who had not been reared in its awful shadow, say an English Churchman, or a Continental Catholic; and he said he could not imagine, and that he did not believe such a man could at all enter into our feelings; puritanism, he seemed to think, made an essential and ineradicable difference. I do not believe he had any of that false sentiment which attributes virtue of character to severity of creed, while it owns the creed to be wrong.

He differed from Longfellow in often speaking of his contemporaries. He spoke of them frankly, but with an appreciative rather than a censorious criticism. Of Longfellow himself he said that day, when I told him I had been writing about him, and he seemed to me a man without error, that he could think of but one error in him, and that was an error of taste, of almost merely literary taste. It was at an earlier time that he talked of Lowell, after his death, and told me that Lowell once in the fever of his anti-slavery apostolate had written him, urging him strongly, as a matter of duty, to come out for the cause he had himself so much at heart. Afterwards Lowell wrote again, owning himself wrong in his appeal, which he had come to recognize as invasive. "He was ten years younger than I," said the doctor.

I found him that day I speak of in his house at Beverly Farms, where he had a pleasant study in a corner by the porch, and he met me with all the cheeriness of old. But he confessed that he had been greatly broken up by the labor of preparing something that might be read at some commemorative meeting, and had suffered from finding first that he could not write something specially for it. Even the copying and adapting an old poem had overtaxed him, and in this he showed the failing powers of age. But otherwise he was still young, intellectually; that is, there was no failure of interest in intellectual things, especially literary things. Some new book lay on the table at his elbow, and he asked me if I had seen it, and made some joke about his having had the good luck to read it, and have it lying by him a few days before when the author called. I do not know whether he schooled himself against an old man's tendency to revert to the past or not, but I know that he seldom did so. That morning, however, he made several excursions into it, and told me that his youthful satire of the 'Spectre Pig' had been provoked by a poem of the elder Dana's, where a phantom horse had been seriously employed, with an effect of anticlimax which he had found irresistible. Another foray was to recall the oppression and depression of his early religious associations, and to speak with moving tenderness of his father, whose hard doctrine as a minister was without effect upon his own kindly nature.

In a letter written to me a few weeks after this time, upon an occasion when he divined that some word from him would be more than commonly dear, he recurred to the feeling he then expressed: "Fifty-six years ago—more than half a century—I lost my own father, his age being seventy-three years. As I have reached that period of life, passed it, and now left it far behind, my recollections seem to brighten and bring back my boyhood and early manhood in a clearer and fairer light than it came to me in my middle decades. I have often wished of late years that I could tell him how I cherished his memory; perhaps I may have the happiness of saying all I

long to tell him on the other side of that thin partition which I love to think is all that divides us."

Men are never long together without speaking of women, and I said how inevitably men's lives ended where they began, in the keeping of women, and their strength failed at last and surrendered itself to their care. I had not finished before I was made to feel that I was poaching, and "Yes," said the owner of the preserve, "I have spoken of that," and he went on to tell me just where. He was not going to have me suppose I had invented those notions, and I could not do less than own that I must have found them in his book, and forgotten it.

He spoke of his pleasant summer life in the air, at once soft and fresh, of that lovely coast, and of his drives up and down the country roads. Sometimes this lady and sometimes that came for him, and one or two habitually, but he always had his own carriage ordered, if they failed, that he might not fail of his drive in any fair weather. His cottage was not immediately on the sea, but in full sight of it, and there was a sense of the sea about it, as there is in all that incomparable region, and I do not think he could have been at home anywhere beyond the reach of its salt breath.

I was anxious not to outstay his strength, and I kept my eye on the clock in frequent glances. I saw that he followed me in one of these, and I said that I knew what his hours were, and I was watching so that I might go away in time, and then he sweetly protested. Did I like that chair I was sitting in? It was a gift to him, and he said who gave it, with a pleasure in the fact that was very charming, as if he liked the association of the thing with his friend. He was disposed to excuse the formal look of his bookcases, which were filled with sets, and presented some phalanxes of fiction in rather severe array.

When I rose to go, he was concerned about my being able to find my way readily to the station, and he told me how to go, and what turns to take, as if he liked realizing the way to himself. I believe he did not walk much of late years, and I fancy he found much the same pleasure in letting his imagination make this excursion to the station with me that he would have found in actually going.

I saw him once more, but only once, when a day or two later he drove up by our hotel in Magnolia toward the cottage where his secretary was lodging. He saw us from his carriage, and called us gayly to him, to make us rejoice with him at having finally got that commemorative poem off his mind. He made a jest of the trouble it had cost him, even some sleeplessness, and said he felt now like a convalescent. He was all brightness, and friendliness, and eagerness to make us feel his mood, through what was common to us all; and I am glad that this last impression of him is so one with the first I ever had, and with that which every reader receives from his work.

That is bright, and friendly and eager too, for it is throughout the very expression of himself. I think it is a pity if an author disappoints even the unreasonable expectation of the reader, whom his art has invited to love him; but I do not believe that Doctor Holmes could inflict this disappointment. Certainly he could disappoint no reasonable expectation, no intelligent expectation. What he wrote, that he was, and every one felt this who met him. He has therefore not died, as some men die, the remote impersonal sort, but he is yet thrillingly alive in every page of his books. The quantity of his literature is not great, but the quality is very surprising, and surprising first of all as equality. From the beginning to the end he wrote one man, of course in his successive consciousnesses. Perhaps every one does this, but his work gives the impression of an uncommon continuity, in spite of its being the effect of a later and an earlier impulse so

very marked as to have made the later an astonishing revelation to those who thought they knew him.

IX.

It is not for me in such a paper as this to attempt any judgment of his work. I have loved it, as I loved him, with a sense of its limitations which is by no means a censure of its excellences. He was not a man who cared to transcend; he liked bounds, he liked horizons, the constancy of shores. If he put to sea, he kept in sight of land, like the ancient navigators. He did not discover new continents; and I will own that I, for my part, should not have liked to sail with Columbus. I think one can safely affirm that as great and as useful men stayed behind, and found an America of the mind without stirring from their thresholds.

ETEXT EDITOR'S BOOKMARKS:

Appeal, which he had come to recognize as invasive
Appeared to have no grudge left
Could make us feel that our faults were other people's
Hard of hearing on one side. But it isn't deafness
Harriet Beecher Stowe and the Autocrat clashed upon homeopathy
He was not bored because he would not be
He was not constructive; he was essentially observant
His readers trusted and loved him
Men's lives ended where they began, in the keeping of women
Not a man who cared to transcend; he liked bounds
Not much patience with the unmanly craving for sympathy
Old man's disposition to speak of his infirmities
Old man's tendency to revert to the past
Person who wished to talk when he could listen
Reformers, who are so often tedious and ridiculous
Secret of the man who is universally interesting
Sought the things that he could agree with you upon
Spare his years the fatigue of recalling your identity
Study in a corner by the porch
Those who have sorrowed deepest will understand this best
Times when a man's city was a man's country

Turn of the talk toward the mystical
Work gives the impression of an uncommon continuity

End of Project Gutenberg's Oliver Wendell Holmes, by William Dean
Howells

*** END OF THE PROJECT GUTENBERG EBOOK OLIVER
WENDELL HOLMES (FROM LITERARY FRIENDS AND
ACQUAINTANCE) ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.